

SENATE BILL 707

By Massey

AN ACT to amend Tennessee Code Annotated, Title 39, Chapter 17 and Title 43, Chapter 27, relative to access to age-restricted products.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 39-17-1504(d), is amended by deleting the subsection and substituting the following:

(d) Prior to making a sale of, or distributing, tobacco, smoking hemp, vapor product, or smokeless nicotine product, a person engaged in the sale or distribution of tobacco, smoking hemp, vapor product, or smokeless nicotine product shall demand from the prospective purchaser or recipient, and the prospective purchaser or recipient must present to the seller or distributor, proof of age, if an ordinary person would conclude on the basis of appearance that the prospective purchaser or recipient may be less than fifty (50) years of age. In the case of distribution by mail, the distributor of tobacco, smoking hemp, vapor product, or smokeless nicotine product shall obtain from the addressee an affirmative statement that the person is twenty-one (21) years of age or older, and shall inform the recipient that the person is strictly prohibited from distributing any tobacco, smoking hemp, vapor product, or smokeless nicotine product, as defined by this part, to any person under twenty-one (21) years of age.

SECTION 2. Tennessee Code Annotated, Section 39-17-1507(b), is amended by deleting the subsection and substituting the following:

(b) In any place where supervision of a vending machine, or operation by token is required by this section, the person responsible for that supervision or the sale of the token shall demand from the prospective purchaser, and the prospective purchaser must

present to the person responsible for that supervision or sale, proof of age, if an ordinary person would conclude on the basis of appearance that the prospective purchaser may be under fifty (50) years of age.

SECTION 3. Tennessee Code Annotated, Section 39-17-1509(e)(1), is amended by deleting "twenty-nine (29) years of age" and substituting "forty-nine (49) years of age".

SECTION 4. This act takes effect July 1, 2025, the public welfare requiring it.